



Delaware County commissioners April 5th 2021

Meeting Metadata	Details
Video Recording	https://www.youtube.com/watch?v=rHR_IW2mGQw
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Delaware County Commissioners Meeting Summary

Meeting Date: April 2021 (Exact date not explicitly stated in transcript, but references March 31, 2021 closeouts and upcoming May 11, 2021 dates)

Body: Delaware County Board of Commissioners

1. Pre-Meeting Hearings & Committee Work Sessions

- **Session Type & Topic:** Public Hearing on an unspecified matter (00:28). The Council President had indicated the matter could proceed this year.
- **Summary of Discussion:** With no members of the public present to speak for or against the topic, a motion was entertained to close the public hearing.
- **Action & Disposition:** Approved by Voice Vote (Roll call vote: Reagan - Yes, Henry - Yes, King - Yes).

2. Meeting Identification & Attendance

- **Call to Order & Spoken Details:** The meeting was called to order by presiding officer James (00:15), following the Pledge of Allegiance (00:04).
- **Attendance:**
 - **Present:** Commissioner Henry, Commissioner Reagan, Commissioner King, and presiding officer James.

- **Absent:** None noted.
 - **Presiding Officer:** James (Board President/Commissioner).
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3. Preliminary & Procedural Business

- **Ceremonial Openings:** Recitation of the Pledge of Allegiance (00:04).
 - **Approval of Minutes:** Review and approval of minutes from the March 15, 2021 Commissioners meeting, and March 16, 29, and 31, 2021 executive session meetings (00:32:00 context).
 - **Action & Disposition:** Approved by Voice Vote (Roll call vote: Reagan - Yes, Henry - Yes, King - Yes).
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4. Substantive Business & Board Action

- **00:01:10 Board Appointments:** City-County Council for People with Disabilities
 - **Sponsor / Presenter:** Commissioner James.
 - **Deliberation Summary:** Board considered applications for service on the board. Randy Webb, Connor Polk, and Tammy Greenwell reached out and expressed interest. Additionally, Sherry James requested to continue serving. A total of 5 appointments are available.
 - **Action & Disposition:** Motion to approve initial appointments (Webb, Polk, Greenwell) and reappointment of Sherry James. Approved by Voice Vote (Roll call vote: Reagan - Yes, Henry - Yes, King - Yes).
- **00:03:39 Presentation: Delaware County Fairgrounds Update**
 - **Sponsor / Presenter:** Mark DeFavio, Delaware County Fairgrounds (00:03:42).
 - **Deliberation Summary:** DeFavio provided an operational and financial update following the cancellation of the previous year's fair due to the pandemic. Plans are moving forward for the 2021 fair, scheduled for July 12<U+2013>21 (4-H) and July 19<U+2013>24 (Midway). Noted successful PPP loan forgiveness, strong financial footing aided by county support, new revenue streams (Ball State football parking, AKC dog show, Mid-America Houston security contract increase, flea markets, BSU drive-in movie, Shipshewana on the Road, IPW wrestling partnership, antique shows, monster truck show, swine shows, and ongoing Red Cross blood drives). Announced a June ceremony to name the new building the "Farm Bureau Building" in partnership with County Farm Bureau President Hyatt.
 - **Action & Disposition:** Informational presentation; no board vote required.
- **00:03:32 Presentation: Bridge Inventory & Asset Management Report**
 - **Sponsor / Presenter:** John Centa-Giorgio, United Consulting (00:13:32).
 - **Deliberation Summary:** Presented findings from the second phase of bridge inspections (completed October 2020) under a 4-year contract complying with

Federal Highway Administration standards (80% federal reimbursement). Delaware County has 195 bridges (average age ~45 years, slightly above state average). Total load-posted bridges dropped from 27 to 20 (a 25% reduction). The county has replaced 12 bridges and rehabilitated 2 since the firm's involvement. Recommended a 6-year capital plan featuring 21 bridge replacements (~\$18.6 million) and 20 rehabilitations (~\$15.8 million). Discussed departmental staffing needs with County Engineer Angie Moyer, noting approximately three additional staff members would optimize bridge maintenance operations.

- **Action & Disposition:** Informational presentation; no board vote required.
- **00:23:01 Presentation: Blight Elimination Program Closeout Report**
 - **Sponsor / Presenter:** Zane Bishop, City of Muncie Community Development Planner (00:23:23).
 - **Deliberation Summary:** Provided a closeout report for the Hardest Hit Fund Blight Elimination Program. The city demolished roughly 250 residential structures (surpassing the original 208 goal using cost savings) totaling \$3.7 million, 98% of which was reimbursed by the state (IHCDA). The Muncie Redevelopment Commission covered \$125,000 in budget overages. Over \$200,000 went to the county (treasurer/auditor), and \$2.4 million went to local tax-paying contractors. Highlighted property transfers, tax base returns, new affordable housing projects (Habitat for Humanity, Miller-Valentine), and neighborhood stabilization impacts.
 - **Action & Disposition:** Informational presentation; no board vote required.
- **00:32:06 Emergency Declaration 2020-08 (COVID-19 Health Emergency & Mask Mandate)**
 - **Sponsor / Presenter:** John (County Legal Counsel) (00:32:14).
 - **Deliberation Summary:** Outlined the extension of the health emergency tracking the Governor's executive order. Requires face masks inside county buildings and facilities. Does not mandate masks outdoors or dictate blanket mandates for private businesses, but encourages respecting individual business, school, and university policies, as well as social distancing. Noted a slight uptick in local cases (~150 active cases) and positivity rates nearing 4-5%, with over 21,000 fully vaccinated residents. Commissioners debated the strength of the mandate regarding county-owned property vs. general public flexibility.
 - **Action & Disposition:** Approved by Voice Vote (Roll call vote: Reagan - No, Henry - Yes, King - Yes). Note: Explicitly reaffirmed that masks remain strictly required inside Delaware County properties.
- **00:35:54 Petition for Cancellation of Delinquent Property Taxes: 3211 West Mansfield Drive**
 - **Sponsor / Presenter:** John (County Legal Counsel) / Muncie Mayor (00:34:00 context).
 - **Deliberation Summary:** Request by the City of Muncie to cancel delinquent property taxes, fees, special assessments, and penalties assessed against city-

owned property at 3211 West Mansfield Drive. The petition was previously approved by the County Assessor, Auditor, and Treasurer to clear the title for future community development.

- **Action & Disposition:** Approved by Voice Vote (Roll call vote: Reagan - Yes, Henry - Yes, King - Yes).
- **00:39:21 Ordinance: Re-establishing Community Bridge Fund & Increasing Tax Rate (Second Reading)**
 - **Sponsor / Presenter:** Ron Quakenbush, Delaware County Council (00:40:00).
 - **Deliberation Summary:** Second reading of an ordinance to re-establish a community bridge fund and adjust tax rates pursuant to Indiana Code. Councilman Quakenbush clarified that while the commissioners initiate the fund re-establishment, the County Council ultimately sets the specific property tax rate allocation (e.g., half-cent, one penny transferred from the general fund). Commissioners emphasized that all generated funds are strictly earmarked for bridge rehabilitation and maintenance to prevent catastrophic structural failures.
 - **Action & Disposition:** Adopted by Voice Vote (Roll call vote: Reagan - Yes, Henry - Yes, King - Yes).
- **00:44:14 Ordinance 2021-008: Creating American Rescue Plan (ARP) Fund (First Reading)**
 - **Sponsor / Presenter:** John (County Legal Counsel) (00:44:29).
 - **Deliberation Summary:** Introduction of an ordinance establishing a dedicated receipt fund for federal American Rescue Plan (ARP) funds, modeled after State Board of Accounts directives (March 18 guidance). The county anticipates receiving roughly \$11 million in 2021 and another \$11 million in 2022 to address revenue losses, public health responses, and community economic assistance through 2024. Minor technical amendments regarding terminology ("budget" removal, "may" to "will") suggested by State Board of Accounts review were incorporated.
 - **Action & Disposition:** Introduced with amendments and held over for second reading. Approved by Voice Vote (Roll call vote: Reagan - Yes, Henry - Yes, King - Yes).
- **00:47:11 Ordinance 2021-009: Prohibiting Deadly Weapons in Delaware County Justice Center & Juvenile Court**
 - **Sponsor / Presenter:** Emily Anderson, Court Administrator (00:47:25).
 - **Deliberation Summary:** Introduction and consideration of a security ordinance prohibiting deadly weapons in the new county justice center and juvenile court facilities. Updates prior facility policies by adding a provision permitting county employees to carry a firearm on-site with a valid permit, provided they obtain explicit approval from their elected official/department head.
 - **Action & Disposition:**
 - Motion to introduce: Approved by Voice Vote (Roll call vote: Henry - Yes, Reagan - Yes, King - Yes).

- Motion to suspend rules: Approved by Voice Vote (Roll call vote: Reagan - Yes, Henry - Yes, King - Yes).
 - Motion to adopt: Adopted by Voice Vote (Roll call vote: Henry - Yes, Reagan - Yes, King - Yes).
 - **00:49:18 Payment of Claims**
 - **Sponsor / Presenter:** Board Presiding Officer / Clerk.
 - **Deliberation Summary:** Review of claims totaling \$1,563,688.27.
 - **Action & Disposition:** Approved by Voice Vote (Roll call vote: Reagan - Yes, Henry - Yes, King - Yes).
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5. Open Public Comment / Citizen Forum

- **00:49:58 Nathaniel Snow:** Submitted a question regarding whether the county will enforce individual business notices regarding mandatory mask-wearing.
 - **Board/Sheriff Response:** Delaware County Sheriff Tony Skinner clarified that while the Sheriff's Office will not proactively enforce individual private business mask mandates, deputies will respond to calls regarding individuals who refuse to leave private property after being asked by business owners, which constitutes criminal trespassing (**00:50:21**).
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6. Administrative Updates & Adjournment

- **Staff / Board Announcements:**
 - Receipt of the monthly Weights and Measures report noted.
 - Next regular meeting anticipated for May 11, 2021 (**00:46:58**).
 - **Adjournment:** Official motion to recess/adjourn approved by Voice Vote (Roll call vote: Reagan - Yes, Henry - Yes, King - Yes) (**00:51:09**).
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